

COMPLAINT NO. 1061-14-0174

IN THE MATTER OF

CANDIS FIRCHAU

§ **BEFORE THE TEXAS BEHAVIORAL**
§ **HEALTH EXECUTIVE COUNCIL**
§
§ **THE TEXAS STATE BOARD**
§ **OF EXAMINERS OF**
§ **PROFESSIONAL COUNSELORS**

AGREED ORDER

Pursuant to the authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(e), the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order with the following Findings of Fact, Conclusions of Law, and Order of the Council, which have been approved and accepted by **CANDIS FIRCHAU** ("Respondent") and which constitutes a full settlement and compromise of the complaint currently pending against Respondent before the Council in the above-referenced and numbered matter.

FINDINGS OF FACT

1. Respondent is licensed as a professional counselor-supervisor (#59706) in the State of Texas and is therefore subject to the jurisdiction of the Council.
2. On or about June 27, 2013, Respondent failed to report an allegation child abuse within the required forty-eight-hour timeframe. Respondent maintains that she did report the allegation of child abuse but is unable to provide documented proof of reporting.
3. On or about January 24, 2014, Respondent failed to provide a client with a copy of the client's mental health records.
4. During 2013, Respondent entered into a nontherapeutic or dual relationship with a client by having the client perform some computer-related work for the Respondent.

CONCLUSIONS OF LAW

1. Respondent voluntarily received a license from the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 30 and 41.
2. Violation of the Council's Rules is unprofessional conduct and constitutes grounds for the imposition of sanctions under §§ 503.401, 507.301, and 507.351 of the Texas Occupations Code.

3. Based on the above Findings of Fact, the Council finds that Respondent violated Rules then in effect: 22 Tex. Admin. Code § 681.45(c) and Tex. Health & Safety Code § 611.008(a)(1); 22 Tex. Admin. Code § 681.45 (d)(1) and Tex. Fam. Code § 261.101(b); and 22 Tex. Admin. Code § 681.41(l)(1)(5)(B).
4. This Agreed Order is a Settlement Agreement under the Texas Rules of Evidence and is not admissible for the purposes of civil litigation. By entering into this Agreed Order, Respondent does not admit the foregoing Findings of Fact or Conclusions of Law, but agrees to resolve this matter to avoid the expense and uncertainty of further proceedings.

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Respondent's license is hereby REPRIMANDED.
2. Administrative Penalty. Respondent is assessed and shall pay, within thirty (30) days of the date this order is ratified, an administrative penalty in the total amount of \$250.00; of which \$200.00 represents administrative costs and \$50.00 represents administrative penalty.

WARNING

RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE §884.55 REQUIRING FURTHER DISCIPLINARY ACTION.

WAIVERS

On the underlying investigative file, Respondent has waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code Chapter 2001, in exchange for the conditions set out in this Agreed Order.

THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

FOR THE RESPONDENT:

Marc M Meyer

Marc M. Meyer

Texas Bar No. 24070266

Attorney for Respondent

525 Woodland Square Blvd

Suite 250

Conroe, Texas 77384

DATE SIGNED: September 23, 2021

FOR THE STAFF OF THE COUNCIL:

Mary Kay Sicola

Mary Kay Sicola

Texas Bar No. 18339800

Staff Attorney

Texas Behavioral Health Executive Council

333 Guadalupe, Ste. 3-900

Austin, Texas 78701

DATE SIGNED: 9/27/2021

AGREED: Candis F

Candis Firchau (# 59706)

DATE SIGNED: 9/23/2021

APPROVED, RATIFIED, AND ENTERED THIS 28th DAY OF September, 2021.

Darrel Spinks

Darrel Spinks

Executive Director

Texas Behavioral Health Executive Council